Alabama Rules of Civil Procedure

II. Commencement of action; service of process, pleadings, motions, and orders.

Rule 3.

Commencement of action.

(a) Filing the Complaint. A civil action is commenced by filing a complaint with the court.

(b) Filing the Informational Cover Sheet.

(1) Cases Commenced in the Circuit Court. Except in domestic-relations cases, each initial complaint must be filed with an informational cover sheet that has been completed and signed by the plaintiff or their attorney (*see* Form 93 appended to these rules).

(2) Appeals to the Circuit Court from the District Court or the Probate Court. In cases appealed to the circuit court from the district court or the probate court, the notice of appeal must be filed with an informational cover sheet that has been completed and signed by the appellant or their attorney (*see* Form 93 appended to these rules).

(3) Failure to Include an Informational Cover Sheet. The failure to include the required informational cover sheet does not invalidate the commencement of the case or the appeal. In that situation, the clerk must accept the complaint or the notice of appeal and inform the filing party of this rule's requirements. The filing party or their attorney must promptly file a properly completed cover sheet. If no completed cover sheet is filed, the court may treat that failure as contempt of court and may issue:

(A) an order staying the case or the appeal until the cover sheet is filed;

(B) an order dismissing the case or the appeal, but only after giving proper notice; or

(C) any other appropriate order.

(dc) District Court Rule. With the exception of Rule 3(b)(1), Rule 3 applies in the district courts.

[Amended 8-27-91, eff. 10-1-91; Amended eff. 10-24-2008; Amended eff. 09-032025.]

Committee Comments on 1973 Adoption

This rule is in accord with existing Alabama practice. Code of Ala., Tit. 7, § 43. That section of the Code also listed the persons with whom the complaint could be filed. This matter is now covered by Rule 5(e).

Under the rules it will not be necessary to file the summons along with the complaint. Compare Code of Ala., Tit. 7, § 182. Instead, upon filing of the complaint, the clerk is required forthwith to issue a summons and deliver it to a proper person for service. Rule 4(a).

By virtue of this rule, filing of the complaint "commences" the action for purposes of the statute of limitations even though actual service may not be made until some time thereafter, at least where the plaintiff uses due diligence in attempting to make service. *Horn v. Pope*, 205 Ala. 127, 87 So. 161 (1920). And filing, even without service, is the date from which is to be reckoned the availability of such procedures as a motion for summary judgment, Rule 56(a). See *Edwin H. Morris & Co., Inc. v. Warner Bros. Pictures, Inc.,* 10 F.R.D. 236 (S.D.N.Y.1950).

Rule 5(e) defines filing with the court as accomplished by filing the papers with the clerk, or, by permission of the judge, filing them with the judge to be transmitted by him to the clerk. In some circumstances papers are to be filed with the register in chancery rather than with the clerk. See Rule 5 and Rule 79(f) and notes thereto.

Court Comment to Amendment Effective October 1, 1991

The amendment adding Rule 3(b) and (c) and modifying 3(dc) provided for the use of cover sheets in civil actions. These sheets will give the court more detailed information to enhance court management decisions.

Committee Comments to Amendment to Rule 3(b) Effective October 24, 2008

This is a technical amendment intended to encompass both paper and electronic filings. No substantive change is intended.

Committee Comments to the Amendment of Rule 3 Effective September 3, 2025

These changes are intended to be stylistic only.

Note from the reporter of decisions: The order amending effective October 24, 2008, Rule 3, Rule 4, Rule 5, Rule 6, Rule 11, Rule 55, Rule 58, Rule 59.1, Rule 77, and Rule 79, and adopting effective October 24, 2008, the Committee Comments to Amendment to Rule 3(b) Effective October 24, 2008; Committee Comments to Amendments to Rule 4 Effective October 24, 2008; Committee Comments to Amendments to Rule 5 Effective October 24, 2008; Committee Comments to Amendments to Rule 6 Effective October 24, 2008; Committee Comments to Amendment to Rule 11 Effective October 24, 2008; Committee Comments to Amendment to Rule 55(a) Effective October 24, 2008; Committee Comments to Amendments to Rule 58 Effective October 24, 2008; Committee Comments to Amendment to Rule 59.1 Effective October 24, 2008; Committee Comments to Amendments to Rule 77(d) Effective October 24, 2008; and the Committee Comments to Addition of Rule 79(e) Effective October 24, 2008, is published in that volume of *Alabama Reporter* that contains Alabama cases from 994 So. 2d.

Note from the reporter of decisions: The order amending Rule 3, Alabama Rules of Civil Procedure, and Form 93 in Appendix I to the Alabama Rules of Civil Procedure and adopting the Committee Comments to the amendment of Rule 3, effective September 3, 2025, is published in that volume of *Alabama Reporter* that contains Alabama cases from __ So. 3d.